

2022 P L C 79

[Lahore High Court]

Before Jawad Hassan, J

PACKAGES LIMITED through Factory Manager/Personnel Manager

Versus

PUNJAB LABOUR APPELLATE TRIBUNAL and another

Writ Petition No.32213 of 2016, decided on 22nd February, 2019.

Punjab Industrial Relations Act (XIX of 2010)---

---S.33---Qanun-e-Shahadat (10 of 1984), Art. 113---Redress of individual grievances---Facts admitted need not be proved---Delay in sending grievance notice---Scope---Respondent was dismissed from service on charges of misconduct and absence from duty---Respondent filed a grievance petition which was dismissed on the ground that he had not filed a grievance notice within time as per the mandatory requirement of law---Labour Appellate Tribunal allowed the appeal and remanded the case to the Labour Court on the ground that petitioner/employer had admitted the receiving of the grievance notice in its pleadings---Validity---Petitioner had admitted the receiving of the grievance notice but nowhere was it admitted that the notice was received within the prescribed time nor could it be presumed that the notice was served upon the petitioner within time because it was vehemently denied by the petitioner---Impugned judgment was passed by misreading the record and misconstruing the real facts, therefore, the same was set aside---Constitutional petition was allowed, in circumstances.

Almas Ahmad Fiaz v. Secretary, Government of the Punjab and others 2007 PLC 64; Messrs Qureshi Salt and Spices Industries and others v. Muslim Commercial Bank Limited and others 1999 SCMR 2353; Khushal Khan v. Muslim Commercial Bank Limited and others 2002 SCMR 943 and Ghulam Mustafa v. Messrs Shah Murad Sugar Mills 2009 PLC 83 ref.

Barrister Rafey Zeeshan Javed for Petitioner.

Rana Liaqat Ali for Respondent No.2.

JUDGMENT

JAWAD HASSAN, J.----Through the instant Constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has prayed for setting aside the order dated 25.04.2016 passed by the Respondent No.1.

2. The brief facts revealing from the petition are that the Respondent No.2 was serving as Security Guard in the Petitioner establishment. Upon the charges of misconduct and absence

from duty firstly the Respondent No.2 was issued a show-cause notice and thereafter a proper inquiry was conducted whereby he was dismissed from service. The Respondent No.2 filed a grievance petition before the Labour Court No.2, Lahore (the "Labour Court") which dismissed the same vide judgment dated 27.04.2015 on the ground that the Respondent No.2 had not filed a grievance notice within time as per the mandatory requirement of law. Feeling aggrieved thereby the Respondent No.2 filed an Appeal before the Respondent No.1 who accepted the same and remanded the matter to the Labour Court, Lahore for its decision afresh on merits. Hence, this petition.

3. Learned counsel for the petitioner inter alia contended that the impugned judgment is against law and facts; that the impugned judgment is result of misreading of material available on record as the Respondent No.1 has misconstrued in respect of claim in paragraph 7 of the grievance petition as an admission on the part of the Petitioner; that the Respondent No.1 has failed to appreciate the facts in its true perspective. In support of his contentions learned counsel has placed reliance on the case titled Almas Ahmad Fiaz v. Secretary Government of the Punjab and others (2007 PLC 64 [Supreme Court of Pakistan]), Messrs Qureshi Salt and Spices Industries and others v. Muslim Commercial Bank Limited and others (1999 SCMR 2353), Khushal Khan v. Muslim Commercial Bank Limited and others (2002 SCMR 943) and Ghulam Mustafa v. Messrs Shah Murad Sugar Mills (2009 PLC 83 [Karachi High Court]).

4. On the other hand, learned counsel for the Respondent No.2 vehemently contested the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the instant petition on the grounds that the impugned judgment has rightly been passed which does not require any interference by this Court.

5. Arguments heard and record perused.

6. Basically, the Respondent No.1 has allowed the Appeal of the Respondent No.2 and remanded the case to, the Labour Court on the ground that in para No.7 of the grievance petition the Respondent No.2 contended that notice was served upon the Petitioner on 12.06.2004 under registered post (A.D). The Petitioner while replying para No.7 of the grievance petition admitted it correct to the extent of service of grievance notice on 12.06.2004 thereafter the Petitioner could not raise this plea that grievance notice was not served within statutory period of limitation because admitted facts need no proof nor could be subsequently denied. The contention of the learned counsel for the Petitioner is that the Petitioner has never admitted that they have received the grievance notice on 12.06.2004 and the above finding is nothing but misreading of material available on record. For the sake of brevity the relevant paragraph i.e. No.7 of the reply submitted by the Petitioner in grievance petition is reproduced below and is as follows:

"Para 7 is correct to this extent that a grievance notice was received from the Petitioner which did not disclose any cause of action."

7. From the perusal of the above reproduced reply it is explicit that although the Petitioner admitted that they received the grievance notice from the Respondent No.2 but it nowhere mentions that the Petitioner has received the said notice on 12.06.2004 nor it can be presumed that the said notice was served upon the Petitioner on 12.06.2004 because it has vehemently

denied this fact and has taken specific stance that the dismissal order of the Respondent No.2 is dated 13.05.2004 and the date on the envelope of grievance-notice sent to the Petitioner is 14.06.2004, therefore, the grievance notice was not received within due date i.e. 30 days as such was time barred.

8. In view of the above, suffice it to hold that the impugned judgment has been passed by misreading the record and misconstruing the real facts, therefore, the same is set aside. Consequently, the instant petition is hereby allowed and the judgment of the Labour Court dated 27.04.2015 is upheld.

SA/P-14/L Petition allowed.